

acknowledges that the remainder of Martin’s declaration does raise genuine issues of material fact regarding the existence of a possible employment relationship between BW Macaw and the remaining defendants.

(City’s reply brief, p.2:13-16.)

Further, City also acknowledges that while “liability can still be imposed pursuant to SJMC § 1.08.15.5 or under a theory of alter ego liability... summary adjudication has not been sought on either of these theories....” (City’s reply brief, p.2:18-25.)

Accordingly, City’s motion for summary adjudication of the first cause of action for collection of cannabis business tax is DENIED as to defendants DNCN, Nguyen and Martin.

City shall prepare and submit a proposed final order consistent with this tentative ruling.

Calendar Line 10

Case Name: Urquhart v. Cupertino Electric, Inc.

Case No.: 26CV485544

Defendant Cupertino Electric, Inc. (“Defendant”) moves to strike eleven images from the complaint and also moves to seal the complaint, its notice of motion and the supporting memorandum of points and authorities. In opposition, plaintiff Robert Urquhart (“Plaintiff”) argues that there is no rule that prohibits the insertion of graphic images and that the images are relevant as they illustrate the allegations. The Court agrees that images may be inserted into a complaint. It is not uncommon to have relevant images in a complaint such as a diagram of a product or the layout of an area at issue or even a photo of an email or website that is purported to contain defamatory statements. However, these “illustrative graphics” are not helpful for the Court or jury in understanding the allegations and are untethered to the specific instance alleged

by the complaint. Accordingly, Defendant's motion to strike each of the eleven images from the complaint is GRANTED. The subject images are hereby stricken from the complaint. Plaintiff is ordered to file an amended complaint without these images within 10 days of this Order.

As Plaintiff is ordered to file an amended complaint without the images, and as the amended complaint will supersede the initial complaint, there is no overriding interest that overcomes the public's right to access to the record. Defendant's motion for an order to seal the complaint, the notice of the motion to strike and the supporting memorandum of points and authorities is DENIED.